

25NWLC55302 25NWLC55302

County: los-angeles

Division: Civil Law and Motion

Department: Y

Hearing date: 2026-06-25

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CY%2C06%2F25%2F2026

Source SHA-256: 905c868fe49cf6799f95540539807181a2202c6b6dfecaf3e016392c9847afd5

Case Number: 25NWLC55302 Hearing Date: June 25, 2026 Dept: Y

25NWLC55302: CAPITAL ONE, N.A., SUCCESSOR BY MERGER TO DISCOVER BANK vs DENISE M SOTO

Tentative Ruling:

The Court has read and reviewed the Motion to Vacate Default Judgment filed by Defendant Denise Soto ("Defendant") on March 9, 2026. No opposition has been filed by Plaintiff Capital One Bank, N.A. ("Plaintiff"). The Court has also reviewed all relevant court records.

The Court notes that Default was entered by the Clerk on December 2, 2025. Default Judgment was entered by the Clerk on December 18, 2025.

The Court notes that Proof of Service of Summons by a registered process server by personal service was filed with the Court on October 13, 2025 creating a presumption of service under Evidence Code section 647. Defendant's declaration, which was signed under penalty of perjury, states that she was not personally served with the Summons and Complaint. She has provided evidence of her work schedule with the Lowell Joint School District. Based on her employment as a full time employee and her required work hours from 8 a.m. to 5 p.m., she would not have been home at 4:15 when the alleged service took place. Defendant also states that the physical description of the person served does not match her physical description. She also confirms she did not have actual notice of this lawsuit. Here, the Court finds that Defendant has rebutted the presumption of service and that there was no actual notice.

"Actual notice," within the meaning of Code of Civil Procedure section 473.5, means genuine knowledge by the defendant, and has been strictly construed. Relief under the statute is liberally granted to defendants so that cases may be resolved on their merits. *Ellard v. Conway* (2001) 94 Cal.App.4th 540, 547-548.

Pursuant to Code of Civil Procedure section 437.5 and, the Court GRANTS the Motion and vacates and sets aside the default judgment.

The Court grants Defendant 20 days leave to file a responsive pleading.

Clerk to give notice.